THE MORNING BRIEF

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THE LEAD SUPREME COURT · LIVELAW 1 MIN READ

Hindu Succession | Grandson Has No Birthright In Property Devolved On Father In Partition Of Grandfather's Estate : Supreme Court

The Supreme Court held that once the grandfather's property devolved on his Class I heirs under Section 8 of the Hindu Succession Act, 1956, and was partitioned among them, the share allotted to the father became his exclusive property in his individual capacity, and that the grandson has no right by birth in such property.

SOURCE · LIVELAW · SUPREME COURT · *J Rajesh (Minor) Thr His Mother and Natural Guardian J Gomathi v. M Kumar…* livelaw.in ↗

- Bench: Justice Augustine George Masih, Justice Sunita Agarwal
- Held so while dismissing an appeal filed by a son who sought half share in land that his father had received in a partition of the…
- Held that “the plaintiff/appellant herein did not acquire right by birth in the property which came in the hands of his father by partition after the…

THE LEGAL LEDGER

17 STORIES

SUPREME COURT · LIVELAW

Supreme Court Directs UP Gov To Identify Undertrials Granted Bail But Haven't Been Released From Jail In 75 Districts

The Court has stated that the exercise would cover all undertrial prisoners irrespective of whether they have engaged a private lawyer or have sought assistance of the District Le…

- Bench: Justice MM Sundresh, Justice PB Varale
- Directed the State of Uttar Pradesh to carry out an exercise identifying all undertrial prisoners in 55 districts who have been granted bail but have not…
- Stated that in both categories of undertrials, those who are either getting assistance of DLSA or private lawyers, the issue is with respect to the non-comp

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SUPREME COURT · LIVELAW

Supreme Court Directs WhatsApp And Other Intermediaries To Inform Measures To Prevent Digital Arrest Scam &…

A bench comprising the Chief Justice of India Surya Kant, Justice Joymalya Bagchi, and Justice V Mohana issued the direction while hearing the suo motu case (In Re: Victims…

- Directed WhatsApp and other similar intermediaries to inform it of the measures the intermediaries propose to undertake to prevent digital arrest scams and cy
- Directed to apprise this Court of the measures they propose to undertake to prevent the digital arrest scams and related cybercrimes
- Directed that the regulatory measures proposed by the Reserve Bank of India must require banks to compensate victims of cyberscams if it is established that t

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SUPREME COURT · SUPREME COURT OBSERV…

Hum Do, Hamare Do? - Supreme Court Observer

Home > Analysis > Hum Do, Hamare Do? The top court was asked about a birth certificate and has now reopened its 2003 ruling on the two-child rule “Hum Do, Hamare Do” (We two, …

Supreme Court Observer · 1 min read www.scobserver.i…

SUPREME COURT · SCC ONLINE

Supreme Court asks P&H HC to decide PIL petitioner’s locus before examining merits of religious conversion allegations

Supreme Court: While considering a Special Leave Petition challenging the interim order dated 27 August 2026 passed by the Punjab and Haryana High Court in a Public Inter…

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SUPREME COURT · BAR & BENCH

Five days for some, five years for others: What the Collegium's own record says

Justice Sanjay Kishan Kaul's memoir, entitled Without Fear or Favour, has started a debate. The former judge said that ex-Chief Justice of India DY Chandrachud was too deferential to …

Bar & Bench · 1 min read www.barandbench.com/column…

SUPREME COURT · SCC ONLINE

Balance sheet entries can acknowledge a debt and renew limitation under Section 18, Limitation Act: SC restores…

Supreme Court: In an appeal concerning rejection of a money recovery suit as barred by limitation, the three-Judge Bench of Vikram Nath* , Augustine George Masih and Sand…

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LEGISLATION · SCC ONLINE

Delhi notifies Slum and Jhuggi Jhopri Relocation and Rehabilitation Policy, 2026; eligible residents to get 1 BHK…

On 4 November 2026, the Government of NCT of Delhi has notified the Delhi Slum and Jhuggi Jhopri Relocation and Rehabilitation Policy, 2026, following its approval by the Delhi Ur…

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HIGH COURT · BAR & BENCH

With or without authority? The email controversy at Bombay High Court [Watch Video]

The Bombay High Court on October 29 quashed an administrative directive that froze trustee appointments to the Shree Saptashrungi Niwasini Devi Trust in Nashik, Maharashtra A divisi…

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PATNA HIGH COURT · LIVELAW

'Compounding Of Companies Act Offence Extinguishes Foundation Of Criminal Prosecution': Patna High Court

The Patna HC has held that once an offence under the Companies Act has been compounded by the competent statutory authority, criminal prosecution founded on the same contraventi…

- Single Judge: Justice Ansul
- Provision: Section 233 of the Companies Act, 1956
- Noted that the compounding order had neither been stayed nor set aside by any competent authority or court and therefore remained operative
- Noted that Section 441(3)(d) of the Companies Act, 2013, provides that where compounding takes place after institution of prosecution, the Registrar must c

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GAUHATI HIGH COURT · LIVELAW

PAN Card And Voter ID Alone Cannot Prove Indian Citizenship Without Supporting Records : Gauhati High Court

The Gauhati High Court has held that PAN cards and Electoral Photo Identity Cards (EPICs) issued on the basis of self declarations without formal verification cannot by themsel…

- Division Bench: Justice Kalyan Rai Surana, Justice Susmita Phukan Khaund
- Provision: Section 6A(2) of the Citizenship Act, 1955
- Held that the petitioner had failed to establish her relationship with her projected father and grandparents through cogent and reliable evidence
- Noted that the petitioner had been given several opportunities to produce additional evidence before the Tribunal but had failed to do so

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BOMBAY HIGH COURT · LIVELAW

Noise Pollution From Mushrooming Construction Sites In Mumbai A Serious Issue Needing Urgent Redressal:…

The Court noted that it cannot overlook the fact that pollution in Mumbai is a serious issue. It observed that strict noise pollution norms prescribing permissible decibel limits must…

- Division Bench: Justice Mahesh Chandra Tripathi, Justice Advait M. Sethna
- Observed that noise pollution arising from the mushrooming construction sites in Mumbai is a serious issue requiring urgent redressal, directing developers to
- Directed developers and builders, particularly the concerned developer, to file an undertaking before the Court confirming that they would strictly comply wit

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JHARKHAND HIGH COURT · LIVELAW

'Mental Illness Cannot Be Ground For Divorce, Refusal To Undergo Treatment Not Automatically Cruelty': Jharkhand High Court

The Jharkhand HC has held that mental illness cannot, by itself, be a ground for stigmatising a spouse or dissolving a marriage, and that refusal or inability to undergo medical treatment cannot.

- Division Bench: Justice Sujit Narayan Prasad, Justice Akhil Kumar
- Held that where mental illness and refusal of treatment are pleaded as grounds for matrimonial relief, courts must carefully examine the medical evidence
- Held to resolve the matrimonial dispute, but without success

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HIGH COURT · SCC ONLINE

Can the police block a Facebook page through an SP's intimation to Meta? P&H HC clarifies the authority prescribed under IT…

Punjab and Haryana High Court: In a writ petition challenging an intimation issued under Section 79(3) (b), Information Technology Act, 2000 (IT Act) to Meta Platforms Inc., pursuant…

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ALLAHABAD HIGH COURT · LIVELAW

Agricultural Entry In Revenue Records Alone Doesn't Exempt Land From SARFAESI Proceedings: Allahabad High…

The Allahabad High Court has held that whether a secured asset is agricultural land, so as to attract the exclusion under Section 31(i) of the Securitisation and Reconstruction of Finan…

- Bench: Justice Irshad Ali

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KERALA HIGH COURT · LIVELAW

Drunk Driving | Authorities Need Not Wait For Criminal Conviction To Suspend Or Revoke Driving Licence: Kerala High Court

The Kerala High Court recently directed the Transport Commissioner to ensure prompt and effective action is taken to suspend or revoke the licences of persons engaged in drunken drivi…

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MADRAS HIGH COURT · LIVELAW

2423 Corruption Cases Pending Throughout TN: Madras High Court Asks State To Examine Setting Up Special Courts

The Madras High Court recently flagged the pendency of corruption cases throughout the state of Tamil Nadu and directed the State Government to take appropriate steps for setti…

- Bench: Justice B Pugalendhi
- Provision: Section 4(4) of the Prevention of Corruption Act
- Directed the state to extend all necessary cooperation to the High Court administration in providing the required infrastructure, supporting staff and other f
- Directed the Principal District and Sessions Judges dealing with corruption cases to give it due priority and make every endeavour to conduct the trial on a…

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MANIPUR HIGH COURT · LIVELAW

Manipur High Court Keeps 2027 Census On Hold Till April 30, Directs Centre To Decide Seven Representations

The Manipur High Court (High Court) has directed the Registrar General and Census Commissioner of India to consider seven representations raising concerns over …

- Division Bench: Justice M. Sundar, Justice A. Guneshwar Sharma
- Noted that seven representations had been placed before it
- Directed the Registrar General and Census Commissioner of India to examine the seven representations individually on their respective merits and in accordance

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CASE LAW YOU CAN QUOTE §

JUDICIARY CAPSULE · RATIOS FOR THE ANSWER SHEET

J Rajesh (Minor) Thr His Mother and Natural Guardian J Gomathi v. M Kumaran (Dead) Thr LRs & Ors — SUPREME COURT

RATIO *A son who inherits his father's property under Section 8 takes it absolutely, and that his own son has no right by birth in it.*

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Subodh Kumar Goel v. State of Bihar and Anr — PATNA HIGH COURT

RATIO *Once an offence under the Companies Act has been compounded by the competent statutory authority…*

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Kulchan Begum v. Union of India & Ors — GAUHATI HIGH COURT

RATIO *PAN cards and Electoral Photo Identity Cards (EPICs) issued on the basis of self declarations without formal verification cannot by themselves establish Indian citizenship unless…*

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Trump names hardliner' Miller chief ofstaff after midterm loss

Oneofmy most trusted advisors, says US President JacobBogage Reuters Washington, November7 Washington, November 7 LATE IN his blitzto salvage Re- US PRFSIDENTDon…

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WORLD · THE HINDU

Hasina seeks new passport; Dhaka firm on extradition

Hours after a legal team representing deposed Bangladesh Prime Minister Sheikh Hasina sought a new passport for her, the Government of Bangladesh asserted on Monday that …

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WORLD · THE HINDU

Trilateral meet with Putin, Xi likely next week, says Trump

U.S. President Donald Trump has said he will likely meet Chinese President Xi Jinping and Russian President Vladimir Putin in a rare trilateral leaders' meeting on the sidelines of …

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Vance tries to build his 0wn 2028 brand

JacobBogage Washington, November7 LATE IN his blitzto salvage Re- publicans' midterm fortunes, Vice PresidlentJD Vance shifted strategy. He talked less about President Don…

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Din in Thrissur Corporation council as LDF alleges ruling UDF of withholding order on property tax revision

Opposition demands implementation of Supreme Court ruling scrapping revised tax rates for 2016-22; councillors removed by police after protest.

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NATIONAL · TELEGRAM PDF

China confirms discussions underway on a historic Xi-Trump-Putin meeting

Didi Tang lines of a regional summit in the Asia-Pacific Economic Co- erals, accordingtoa statement from Greer's office. the southern Chinese city of Washington, Novemb…

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NATIONAL · THE HINDU

BJP sets sights on grassroots expansion ahead of A.P. panchayat polls

State president P.V.N. Madhav urges leaders to secure a presence in every village and panchayat, building on the party's gains in municipal corporations, ZPTCs and MPTCs.

The Hindu · 1 min read www.thehindu.com/news/national/…

NATIONAL · THE HINDU

APTF demands withdrawal of SLOs appointed for SA-1 examinations

APTF State president Chennupati Manjula and general secretary K. Basava Linga Rao submitted a memorandum to Commissioner of School Education Tameem Ansariya, urging her…

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NATIONAL · THE HINDU

JNTUA to host 'Viksit Bharat Youth Parliament' on November 12

JNTUA hosts Viksit Bharat Youth Parliament on Nov 12; youth 15-25 compete on drug-free India theme for national-level selection.

The Hindu · 1 min read www.thehindu.com/news/national/…

NATIONAL · THE HINDU

Punjab Congress to begin outreach campaign from November 11 ahead of 2027 polls

Punjab Pradesh Congress Committee president Pargat Singh said the 'Punjab Mangda Insaaf' campaign will seek accountability from the AAP government over drugs, deteriorating law a…

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ECONOMY · THE HINDU

RBI extends Abhyudaya Bank supersession by another year

The RBI first superseded the bank's Board of Directors for one year on November 24, 2023, citing "material concerns arising from poor governance standards observed within the bank.

The Hindu · 1 min read www.thehindu.com/business/rbi-e…

OPINION & ANALYSIS

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OPINION · THE HINDU

Cracker conundrum: On need for strict enforcement of cracker ban

The two Deepavali nights following the Supreme Court's temporary relaxation of the cracker ban, played out predictably. The Air Quality Index in several north Indian cities was 'severe' …

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Point of no return: On Israel's next government

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A case for Nepal: suing major carbon emitters for floods

While climate wrongs harm society, they do not harm individuals in a sufficiently direct and proximate way.

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OPINION · THE HINDU

How students are the first line of resistance

In a country, and more broadly a society, that bleeds with hate, the youth continue to resist with humour and hope.

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